

Prime Gold International Ltd. v. State of U.P.

Allahabad High Court · Division Bench · 9 February 2017 · Writ-C No. 6134 of 2017 · Writ-C No. 6134 of 2017 · **Writ disposed; petitioner left to Clause 6.14 installments.**

HEADNOTE

A consumer whose only prayer was permission to deposit electricity dues in installments was relegated to Clause 6.14 of the Electricity Supply Code, 2005. The Division Bench held that a statutory installment facility exists under that clause and disposed of the writ without granting or refusing installments on the merits.

FACTUAL SUMMARY

M/s Prime Gold International Ltd. filed Writ-C No. 6134 of 2017 before the Allahabad High Court. Its sole prayer was that outstanding electricity dues be allowed to be deposited in installments. The State of Uttar Pradesh and three other respondents, including the distribution licensee, were represented by the Standing Counsel and Sri Chandan Agarwal. The respondents pointed the petitioner to Clause 6.14 of the Electricity Supply Code, 2005 as the available channel for installment of such dues.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment of electricity dues

HOLDING

Where the sole relief claimed is permission to deposit electricity dues in installments, the consumer has a statutory remedy under Clause 6.14 of the Electricity Supply Code, 2005 and the writ is disposed of leaving the consumer to invoke that clause. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 Clause 6.14 is the statutory channel for seeking installment of electricity dues; the Court did not grant installments on the writ. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER WAS ENTITLED TO DEPOSIT THE ELECTRICITY DUES IN INSTALLMENTS, AND ON WHAT TERMS.

Left to the petitioner to invoke Clause 6.14. ¶ 1